

Court No. - 37

Case :- WRIT - C No. - 47808 of 2013

Petitioner :- Kamal Kant Dixit

Respondent :- State Of U.P. Thru' Principal Secry. And 3 Others

Counsel for Petitioner :- Kshetresh Chandra Shukla

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Ashok Bhushan,J.

Hon'ble Vipin Sinha,J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State and Sri Baleshwar Chaturvedi, Advocate appearing for respondent no. 4.

By this writ petition, the petitioner has prayed for quashing the letter sent by Executive Engineer to the Collector on 25.8.2012 for recovery of amount of Rs.2 lac as well as demand notice dated 24.4.2013 by which further amount of Rs.1,58,739 has been prayed for. Petitioner's grievance is that his electricity has already been disconnected on 30.4.2013. He submits that bill which has been issued by the respondents dated 31.12.2012 (Annexure 4 to the writ petition) is not a correct bill.

The grievance raised by the petitioner being with regard to electricity bill issued to him, we are of the view that remedy available to the petitioner is to file appropriate complaint under para 6.5 of the Electricity Supply Code, 2005 before the concerned Executive Engineer. In the event petitioner files a complaint under para 6.5 of the Electricity Supply Code, 2005, the same shall be disposed of expeditiously.

With the aforesaid observation, the writ petition is dismissed on the ground of alternative remedy.

Order Date :- 6.9.2013

Kuldeep/